

SENATE No. 1868

The Commonwealth of Massachusetts

PRESENTED BY:

Cindy F. Friedman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Option (d) beneficiaries.

PETITION OF:

NAME:

Cindy F. Friedman

DISTRICT/ADDRESS:

Fourth Middlesex

SENATE No. 1868

By Ms. Friedman, a petition (accompanied by bill, Senate, No. 1868) of Cindy F. Friedman for legislation relative to Option (d) beneficiaries. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1679 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Option (d) beneficiaries.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 12 of chapter 32 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out the paragraph, in lines 154 to 160, inclusive, and inserting in
3 place thereof the following paragraph:-

4 Option (d), Member Survivor Allowance. At any time a member, upon his written notice
5 on a prescribed form filed with the board prior to his or her death, may nominate one or more
6 eligible beneficiaries as set forth under option (c) of this section, who if such member dies before
7 being retired shall receive a portion, as specified on said form, of the yearly amount of the option
8 (c) allowance to which such member would have been entitled had his retirement taken place on
9 the date of his death; provided that, in the event that multiple beneficiaries are nominated, the
10 benefit will be calculated using the youngest beneficiary's age at the time of the member's death;

- 11 provided further, that upon the death of a beneficiary, said beneficiary's portion shall be divided
- 12 evenly among surviving beneficiaries.